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Kids may still need booster seat under new law

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A new California law aims to keep more short children in booster seats for longer, imposing fines if they can't properly wear their seat belt.

Last week, Gov. Gavin Newsom signed a watered-down version of Assembly Bill 435 that originally proposed to ban smaller teenagers from sitting in the front seat and to require short-statured youth to use booster seats into their middle school years.

But enough of the Democrats who control the Legislature balked at ending the time-honored tradition of teens calling "shotgun" to ride in the front seat.

Instead, they settled on changing the standards police officers use to determine if a child is tall enough to safely wear a seatbelt while riding in a vehicle. Currently, California law requires children to use booster seats until they turn 8 or reach a height of 4 foot 9 inches.

That won't change under the law Newsom signed. But beginning in 2027, children from 8 to 16 years old will have to pass a five-step test to be considered properly restrained by a seat belt under California law.

If the driver of a vehicle can't answer "yes" to all of these five questions about their seat-belted child passenger, the driver could get a ticket and fines of $490.

1. Does the child sit all the way back against the seat?

2. Do the child's knees bend comfortably at the edge of the seat?

3. Does the belt cross the shoulder between the neck and arm, resting on the collarbone?

4. Is the lap belt as low as possible, touching the thighs?

5. Can the child stay seated like this for the whole trip?

The bill's proponents said the point is to encourage children and their parents to stay in booster seats until they've grown tall enough for a seat belt to fit them properly. The new rules are in line with recommendations public health officials and the California Highway Patrol have for years encouraged parents to follow.

Advocates cite numerous studies showing that small children in car wrecks are more likely to be severely injured or killed because seat belts aren't designed for their small frames. It's also especially dangerous for small-framed children to sit up front.

"The longer the child can be using a booster if they do not meet the test, the better, because it is so important to have the belt in the right place," said Stephanie Tombrello, the former executive director SafetyBeltSafe U.S.A. and a longtime proponent of seat belt laws.

Original bill was a tough sell

The original version of the bill would have banned teens up to 16 years old from sitting in the front seat if they

couldn't pass the five-step test.

The bill also would have required all children younger than 10 to use booster seats and bar all those under 13 from sitting in the front seat. The measure also would have required children as old as 13 to use a booster seat unless they passed the five-step test.

But even with child and automotive safety and health care groups supporting the bill, it proved to be too tough a sell in its original form for its author, Democratic Assemblymember Lori Wilson of Suisun City.

Her bill sailed through its first two committees. Then, in May, the bill died when Wilson brought it to the Assembly floor. It needed 41 votes to pass. It got 35, with 25 Democrats not voting, which counts the same as voting "no."

As CalMatters reported, Democrats almost never vote "no" on their colleagues' bills. Instead, they typically don't vote at all. In the Capitol, it's seen as a more polite way of saying "no" and less likely to lead to retaliation. Not voting also allows politicians to dodge accountability for controversial votes since it's difficult for a member of the public to determine if a particular lawmaker was actually there to vote that day.

Wilson told CalMatters that part of the resistance from her Democratic colleagues was fallout over controversial legislation that sought to increase penalties for teen sex solicitation. That legislation raised difficult questions in the Democratic caucus about how hard to crack down on those accused of soliciting sex from minors, based on whether the victims were younger or older teenagers.

Then along came Wilson's bill soon after. Wilson said conservative media outlets made comparisons between the bills, since hers sought to have the state treat some teens like small children. That was seen as hypocritical given the resistance from progressive Democrats to increasing penalties for those soliciting sex from older teenagers.

"It then started getting eyes on it," she said. "And people started talking about, 'Well, actually, I have a 10-year-old, and they don't want to sit in a booster seat. I don't want them to sit in a booster seat.'"

None of the Democrats who didn't vote on the bill in May spoke during the bill's brief Assembly floor hearing.

Of the Assembly Democrats who didn't vote that day, CalMatters requested interviews this week with five of them, all of whom have children.

Spokespeople for Cottie Petrie-Norris of Irvine, Maggy Krell of Sacramento, Rhodesia Ransom of Stockton, Jesse Gabriel of Encino and Christopher Ward of San Diego did not make them available for interviews.

The following month, Wilson brought the bill back to the Assembly. Noting that many of her colleagues were leery of the bill, she promised to fix it in the Senate.

With her assurances, the bill squeaked by with 42 votes. Then, after the most controversial provisions were removed, it passed the Senate unanimously.

Wilson said she's satisfied with the version of the bill that Newsom signed and has no plans to resurrect the more controversial measures in future legislation.

"I think just changing the culture, and now it being required by law to properly restrain your child," she said, "I think that's enough to push parents to make the right choice for their kids."

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